

Senate File 370

S-3041

1 Amend Senate File 370 as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <Section 1. Section 256.9, Code 2025, is amended by adding
5 the following new subsection:

6 NEW SUBSECTION. 69. Develop and distribute to school
7 districts, accredited nonpublic schools, charter schools, and
8 innovation zone schools model policies that, if adopted, would
9 satisfy the school district's, charter school's, or innovation
10 zone school's responsibilities under section 279.87 relating to
11 policies governing student use of personal electronic devices.

12 Sec. 2. NEW SECTION. 279.87 Limitation on the use of
13 personal electronic devices.

14 1. Commencing with the school year beginning July 1, 2025,
15 the board of directors of each school district shall adopt
16 policies regarding student use of personal electronic devices
17 during school hours that restrict student use of such devices
18 during classroom instructional time. The policies must meet
19 all of the following requirements:

20 a. Identify policies and information related to various
21 educational devices and technologies that will be made
22 available to students for instructional purposes.

23 b. Identify the methods that a parent or guardian of
24 a student may use to communicate with the student during
25 school hours or while the student is participating in a
26 school-sponsored activity.

27 c. Identify the methods that a parent or guardian of a
28 student may use to communicate with the student during an
29 emergency situation.

30 d. Include protocols that the school district will use to
31 securely store a student's personal electronic device when such
32 device is in the possession of the school district.

33 e. Specify the discipline associated with a student's
34 violation of the policies, including the discipline associated
35 with a student's use of a personal electronic device during

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1 classroom instruction or during the administration of an
2 assessment.

3 *f.* Establish a process through which a student's parent
4 or guardian may petition the school district to allow the
5 student to maintain access to the student's personal electronic
6 device during the portion of the school day in which classroom
7 instructional time is delivered if the student's parent or
8 guardian can establish that there is a legitimate reason
9 related to the student's physical or mental health for the
10 student to maintain access to the device during such time.

11 *g.* Allow a student who has an individualized education
12 program, or a plan under section 504 of the federal
13 Rehabilitation Act, 29 U.S.C. §794, to maintain access to the
14 student's personal electronic device during the portion of the
15 school day in which classroom instructional time is delivered
16 if the student's individualized education program, or plan
17 under section 504 of the federal Rehabilitation Act, 29 U.S.C.
18 §794, requires the student to maintain such access.

19 2. The board of directors of a school district may adopt
20 policies that limit student use of personal electronic devices
21 during school hours, including the use of such devices during
22 classroom instructional time, that are more stringent than the
23 model policies developed and distributed by the director of the
24 department of education pursuant to section 256.9, subsection
25 69.

26 3. For purposes of this section, "*personal electronic*
27 *device*" includes but is not limited to electronic communication
28 equipment, mobile phones, smart phones, video game devices, and
29 portable media players.

30 4. The state board of education may adopt rules pursuant to
31 chapter 17A to administer this section.

32 Sec. 3. REVISION OF HIGH-QUALITY EMERGENCY OPERATIONS
33 PLANS.

34 1. The department of education and the department of public
35 safety shall do all of the following:

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1 a. Consult regarding revisions that school districts need
2 to make to high-quality emergency operations plans developed
3 pursuant to section 280.30 to take into account the provisions
4 of section 279.87, as enacted by this Act, and revisions
5 that accredited nonpublic schools may make to such plans to
6 take into account policies regarding student use of personal
7 electronic devices during school hours.

8 b. Provide support and guidance to school districts
9 regarding how to revise high-quality emergency operations
10 plans developed pursuant to section 280.30 so that such plans
11 are consistent with the provisions of section 279.87, as
12 enacted by this Act, and provide similar support and guidance
13 to accredited nonpublic schools that elect to adopt policies
14 regarding student use of personal electronic devices during
15 school hours.

16 2. On or before July 1, 2025, each school district shall
17 revise the school district's high-quality emergency operations
18 plans developed pursuant to section 280.30 so that such plans
19 are consistent with the provisions of section 279.87, as
20 enacted by this Act.

21 Sec. 4. EFFECTIVE DATE. The following, being deemed of
22 immediate importance, take effect upon enactment:

23 1. The section of this Act enacting section 279.87.

24 2. The section of this Act relating to the revision of
25 high-quality emergency operations plans.>

26 2. Title page, by striking lines 1 through 5 and inserting
27 <An Act relating to electronic devices in schools, including
28 student access during instructional hours and school safety
29 plans, and including effective date provisions.>

LYNN EVANS